

25STCV18505 25STCV18505

County: los-angeles

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Case Number: 25STCV18505 Hearing Date: August 19, 2026 Dept: 415

TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

August 19, 2026

CASE NUMBER

25STCV18505

MOTION

Motion to Compel Deposition

MOVING PARTY

Defendant General

Motors LLC

OPPOSING PARTY

Plaintiff Elsie M. Rasmussen

MOTION

Defendant General

Motors LLC ("Defendant") moves to compel Plaintiff Elsie M. Rasmussen ("Plaintiff") to appear for deposition pursuant to Code of Civil Procedure section 871.26. Plaintiff opposes the motion.

ANALYSIS

Pursuant to Code of Civil Procedure section 871.26, subdivision (c) (section 871.26), within 120 days after the filing of the answer or other responsive pleading in an action under the Song-Beverly Consumer Warranty Act, the defendant has the right to conduct an initial deposition, each not to exceed 2 hours, of the plaintiff. A party who fails to comply with this requirement is subject to sanctions unless the party shows good cause for such failure. (Code Civ. Proc., § 871.26, subd. (j).)

Defendant filed its demurrer to Plaintiff's complaint on October 21, 2025. As such, Plaintiff had until February 18, 2026 to appear for her initial deposition. Plaintiff failed to do so.

In opposition, Plaintiff argues she was willing to appear for the deposition. Defendant served Plaintiff with a notice of deposition, scheduling the deposition to take place on January 9, 2026. Plaintiff objected to the deposition notice on the basis Plaintiff was unavailable on that date. A party may object to a deposition notice based on any "error or irregularity" in the deposition notice. (Code Civ. Proc., § 2025.410, subds. (a), (b).) In the instant case, however, Plaintiff did not object to errors or irregularities in the deposition notice. Instead, being unavailable on the date Defendant selected required Plaintiff to seek a protective order for the deposition to be taken at a different time. (Code Civ. Proc., § 2025.420, subd. (b)(2).) Plaintiff did not do so. Further, Defendant attempted to reschedule the deposition to accommodate Plaintiff, and Plaintiff ignored those efforts. (Declaration of Sanja Stark in Support of Motion, ¶¶ 6-8, Exhibit D.) Thus, Plaintiff failed to comply with section 871.26's requirements.

Accordingly, the Court imposes sanctions in the amount of \$1,500 against Plaintiff's counsel of record, Strategic Legal

Practices, APC, as required under section 871.26. (Code Civ. Proc., § 871.26, subd. (j)(2).) Plaintiff's counsel of record, Strategic

Legal Practices, APC, is to pay sanctions in the amount of \$1,500 to Defendant, by and through counsel, within 15 business days.

Section 871.26

does not provide authority for the Court to compel Plaintiff to appear for Plaintiff's initial deposition. The Court cannot grant Defendant's motion based on authority other than the authority Defendant cites in its notice of motion. (See Code Civ. Proc., § 1010 ["Notices must be in writing, and the notice of a motion, other than for a new trial, must state when, and the grounds upon which it will be made, and the papers, if any, upon which it is to be based"]; Cal. Rules of Court, rule 3.1110(a) ["A notice of motion must state in the opening paragraph the nature of the order being sought and the grounds for issuance of the order"]; *People v. American Surety Insurance Co.* (1999) 75 Cal.App.4th 719, 726 [court concluded notice of motion made no reference to the fact of what the movant sought or the grounds for such relief, as required by rule 311(a) of the California Rules of Court, the predecessor to Rules of Court, rule 3.1110(a)].)

Therefore, the Court denies

Defendant's motion to the extent Defendant seeks to compel Plaintiff to appear for the initial deposition. Defendant's

remedy is sanctions, which the Court will impose in this instance. Nonetheless, the Court notes should Plaintiff fail to comply with Plaintiff's obligation to appear for the initial deposition after notice of this order, Defendant would be entitled to dismissal of Plaintiff's complaint and an award of costs.

(See Code Civ. Proc., § 871.26, subd. (j)(3) ["For a plaintiff's repeated noncompliance with subdivision (b), (c), or (d), a court shall order the case dismissed without prejudice and the plaintiff's attorney to be responsible for costs awarded to the manufacturer"].)

CONCLUSION AND ORDER

Defendant's

motion to compel is granted. Pursuant to section 871.26, Plaintiff's counsel is to pay Defendant, through its counsel, \$1500 within 15 business days of the notice of this order.

Defendant is to

provide notice of the Court's ruling and to file proof of service of same.